

A party filing a motion, except for a motion listed in rule 3.1114, must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported.

CRC 3.1113(b) identifies the contents required in a memorandum of points and authorities.

The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.

None of the motions include a “concise” statement of the facts and the law required in a memorandum, and many lack citation to any authority whatsoever.

The court therefore denies all of these motions, without prejudice to refile any of these motions with a proper memorandum of points and authorities, if there are cases and/or statutes which support the filing of the motion.

The court also notes that after those motions had been filed, Plaintiff has been filing additional documents with the court, apparently intending that these filings be considered as motions. However, these filings were made also without proper memoranda of points and authorities, and thus none will be considered by the court. Any new motions filed by Plaintiff will need to be accompanied by a proper memorandum of points and authorities or they too will be summarily denied.

JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.
Case No. CU24-09570

Motion for Leave to File Second Amended Complaint; Motion to Continue all Hearings

TENTATIVE RULING

The Parties are to appear. At the hearing the Court’s tentative ruling is as follows.

Plaintiff JOSEPH GULLO moves for leave to file a second amended complaint. Plaintiff also moves to continue all presently set hearings in this matter.

Plaintiff’s motion for leave to file a second amended complaint is denied without prejudice due to the following issues.

Plaintiff’s motion for leave to file a second amended complaint fails to observe the requirements of California Rules of Court, Rule 3.1324, notably including the

requirement that a motion for leave to file an amended pleading must include a declaration specifying (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amendment were discovered, and (4) why said facts could not have been discovered earlier. The motion must also include a copy of the proposed amended pleading and information directly identifying each change the amendment would make.

Plaintiff's motion to continue all presently set hearings for one year is denied. The court notes that Plaintiff has been able to file his own motion to compel discovery, filed on November 12, 2025, and has filed an opposition to the demurrer by Defendant Amrock set for March 13, 2026.

The Parties are to appear, however, to discuss continuing Defendant Cit Bank's demurrer to March 13, 2026.

NORMAN ROSS DEYOUNG, JR. vs. ALBERTSON COMPANIES, INC.; ET AL.
Case No. CU25-08680

Special Motion to Strike

TENTATIVE RULING

Defendants' special motion to strike is granted.

"The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941.) Plaintiff's causes of action are all based on a report made by Defendants' employee to law enforcement. (FAC, ¶¶ 9, 14, 17-18, 21, 23-25.) In fact, Plaintiff explicitly admitted that the causes of action "arise directly from Defendants' *unprotected, criminal conduct: the willful and malicious fabrication of a false police report*, as explicitly pleaded and supported by Exhibit A". (Decl. of Dolin, Exh. E, bold added.) Consequently, the burden shifted to Plaintiff to show a probability of prevailing on the merits. (*Varian Med. Sys., Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.)

But, Plaintiff has not, and cannot, establish a reasonable probability to prevail on the merits. Defendants have an absolute privilege for any "statement urging law enforcement personnel to investigate another person's suspected violation of criminal law, to apprehend a suspected lawbreaker, or to report a crime to prosecutorial authorities". (*Hagberg v. Cal. Fed. Bank* (2004) 32 Cal.4th 350, 360, 364.) The privilege is **absolute**, even upon a showing of malice, barring all tort causes of action except a claim of malicious prosecution. (*Action Apartment Ass'n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241-1242; *Hagberg*, 32 Cal.4th at 360; *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209.) "[S]tatements made when a citizen contacts law enforcement personnel to report suspected criminal activity on the part of another person ... can be the basis for tort liability only if the plaintiff can establish the elements